

		Plaintiff must file and serve an amended pleading within 30 days of the notice of ruling. Defendant shall give notice of the ruling.
112.	2022-1269769 Mora v. City of Placentia	The Demurrer to the First Cause of Action for Premises Liability brought by Defendant the City of Placentia is SUSTAINED, with 15-days leave to amend. “Except as otherwise provided by statute...[a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” (Gov. Code, §815, subd. (a) [emphasis added].) “In other words, direct tort liability of public entities must be based on a specific statute declaring them to be liable, or at least creating some specific duty of care, and not on the general tort provisions of Civil Code section 1714.” (Eastburn v. Regional Fire Protection Authority (2003) 31 Cal.4th 1175, 1183.) “Since the duty of a governmental agency can only be created by statute or ‘enactment,’ the statute or ‘enactment’ claimed to establish the duty must at the very least be identified.” (Searcy v. Hemet Unified School Dist. (1986) 177 Cal.App.3d 792, 802.) Here, the demurrer to the first cause of action for premises liability is sustained, as the claim fails to identify a statutory basis for public entity liability. At most, the Complaint references Placentia’s Municipal Code §2.08.100; however, the same is not a statutory duty, as contemplated by Government Code section 815. Defendant interprets the reference to Municipal Code §2.08.100 as an attempt to invoke Government Code section 815.6, which states: “Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.” (Gov. Code, §815.6.) To the extent Plaintiff intended to rely on the above provision, this reliance fails as: (1) Plaintiff did not plead reliance on Government Code section 815.6; and (2) Placentia Municipal Code §2.08.100 does not establish a mandatory duty.

		“First and foremost, application of section 815.6 requires that the enactment at issue be obligatory, rather than merely discretionary or permissive, in its directions to the public entity; it must require, rather than merely authorize or permit, that a particular action be taken or not taken.” (Ellerbee v. County of Los Angeles (2010) 187 Cal.App.4th 1206, 1215.) “It is not enough, moreover, that the public entity or officer have been under an obligation to perform a function if the function itself involves the exercise of discretion.” (Ibid.) Additionally, “[c]ourts have construed this first prong rather strictly, finding a mandatory duty only if the enactment ‘affirmatively imposes the duty and provides implementing guidelines.’” (Guzman v. County of Monterey (2009) 46 Cal.4th 887, 898.) “An enactment does not create a mandatory duty if it merely recites legislative goals and policies that must be implemented through a public agency’s exercise of discretion.” (Lockhart v. County of Los Angeles (2007) 155 Cal.App.4th 289, 308.) Here, the relevant municipal code states: “The functions of the recreation and parks department shall include planning and implementing recreation programs and activities, coordination of cultural activities, development and maintenance of parks and recreational facilities, and city beautification.” (Placentia Municipal Code §2.08.100.) The Court takes judicial notice of this municipal code, on its own motion, pursuant to Evidence Code section 452, subdivisions (b) and (h). The above language identifies the anticipated function of the recreation and parks department and reflects a policy of maintaining parks. As the above language includes no implementing guidelines – specifically no instructions as to how parks should be maintained - it is a statement of policy, only, and not a mandatory duty. (Tuthill v. City of San Buenaventura (2014) 223 Cal.App.4th 1081, 1090 [“A ‘general statement of public policy’ cannot serve as the basis for a mandatory duty under section 815.6.”]) Based on all the above the demurrer is sustained; however, leave to amend is granted, to permit Plaintiff to allege liability pursuant to Government Code section 835. Defendant to give notice.
113.	2021-1197977 Pham v. Pham	Proposed Intervenor Phuong Truong’s motion to intervene as a defendant-in-intervention as to plaintiff Kim Chi Pham’s cause of action for quiet title in her second amended complaint